

## OUTSIDE (NON-LCPS) EMPLOYMENT

The purpose of this policy is to establish guidelines related to activities for which School Board employees receive monetary compensation or other non-monetary financial incentives for outside, non-LCPS employment and/or for participation in activities outside their job responsibilities as a School Board employee.

A. Generally. Employees may receive compensation for outside employment or non-monetary financial incentives as long as the outside employment or activity:

1. Does not adversely affect their LCPS job performance or interfere with their responsibilities to the Loudoun County School Board.
2. Does not involve the unauthorized use of school property, equipment, or records to include but not limited to:
  - a. Using LCPS email or other documents created through the course of the employee's LCPS job duties (e.g., a classroom newsletter) to solicit or advertise for participation in the services offered through the outside employment or activity;
  - b. Using classroom time, classroom space, work time, or workspace to verbally solicit or advertise for participation in the services offered through outside employment or activity (e.g., Mary Kay, Pampered Chef, fundraiser);
  - c. Using LCPS technology to promote external websites related to outside employment; and/or
  - d. Using any LCPS facility without having secured approval for the use of the facility in accordance with School Board Policy 6310, Facility Use.
3. Does not violate School Board Policy or state or federal laws.

Examples of opportunities for which employees may receive compensation may include, but are not limited to, the following:

- a. Paid trips in exchange for services as a field trip chaperone of LCPS students on a non-LCPS sponsored field trip during non-LCPS work hours;
- b. Private coaching or instruction (but see Section (B)(2) below re: tutoring);

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- c. Summer camps; and/or
- d. Furtherance of a private business enterprise.

B. Compensation.

1. Outside Employment. Employees may receive compensation for outside employment, during non-LCPS work hours, if such employment does not adversely affect LCPS job performance, involve the unauthorized use of school property, equipment, or records, interfere with their responsibilities to the Loudoun County School Board, or violate state laws.

Employees may receive compensation for outside employment during their regular work hours with LCPS, as long as employees use approved annual or personal leave and receive prior written authorization of their supervisor.

Unless using approved annual or personal leave in accordance with applicable School Board Policy 7710: Annual Leave and Policy 7712: Sick Leave, an employee who is on any other type of leave from LCPS, in a paid or unpaid status, may not be employed by any other employer in any capacity during their regular work hours with LCPS, during the period of leave, except with the prior written authorization of the Superintendent or designee.

2. Tutoring. Staff members may not be paid by anyone other than the Loudoun County School Board for tutoring a student in an academic area in which the student is enrolled in a class under their direction.

C. Liability. Employees working in off-duty employment or activity involving any LCPS students shall notify the student's parent/guardian, in writing, that the School Board does not endorse, support, or assume liability for any outside employment or activity conducted by School Board employees.

Adopted: 12/01/15

Revised: 12/03/19

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Legal Refs: Va. Code §§ [22.1-70](#), [22.1-78](#), [2.2-3100 et seq.](#)

Cross Refs: Policy [7566](#), Employee Technology Acceptable/Responsible Use; Policy [7712](#), Sick Leave; Policy [7710](#), Annual Leave; Policy [2160](#), Conflicts of Interest; Policy

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[5070](#), Field Trips; Policy [6310](#), Facility Use; Policy [8-65](#), Solicitation, Distribution, Posting